separate statement, it does not exist." (*California-American Water Co. v. Marina Coast Water Dist.* (2022) 86 Cal.App.5th 1272, 1296.)

Plaintiff alleges a lone cause of action for medical negligence against defendant. A negligence cause of action requires plaintiff to establish: (1) duty, (2) breach, (3) proximate cause, and (4) damages. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.) Where, as here, the alleged negligent acts arise from deficient medical care, the standard of care and breach elements must be established through expert opinion. (*Massey v. Mercy Medical Center Redding* (2009) 180 Cal.App.4th 690, 694.)

Here, defendant meets its initial burden to establish that its treatment of plaintiff met the applicable standard of care. (UMF Nos. 1–84.) The burden therefore shifts to plaintiff to raise a triable issue of material fact. However, plaintiff does not oppose the motion and thus does not raise a triable issue of material fact.

Accordingly, defendant's motion for summary judgment is granted.

9. S-CV-0055246 POLIVAROV, ANDREY V. GENERAL MOTORS

<u>Plaintiffs' Motion for Attorney's Fees and Costs</u>

Plaintiff's motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)

Here, plaintiff is the prevailing party because he achieved his litigation objectives. Defendant does not challenge this. Accordingly, the court must

> make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time

> expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' " ' " '

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoices attached as Exhibit A to the declaration of Kimberli Zazzi. The court determines that 0.5 hours are reasonable for Vince Onorio, 29.1 hours are reasonable for Kimberli Zazzi, and 3.3 hours are reasonable for LaDawna Fleckenstein.

The court also observes the invoice contains entries for "MG," "AB," and "BP." However, nowhere in the notice of motion, memorandum of points and authorities, declarations by counsel, reply papers, or reply declaration does plaintiff or their counsel of record indicate who these individuals are, what their positions are, or what their billed rates are. To that end, the court determines none of the hours expended by these individuals are reasonable.

The court must next address whether the requests for $500 per hour by Vince Onorio, LaDawna Fleckenstein, and Kimberli Zazzi are reasonable. Determining the reasonable amount of attorneys' fees is known as the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano v. Priest* (*Serrano III*) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler*, 22 Cal.4th at p. 1095.) Moreover, "[t]he court may apply a multiplier based on contingent risk, exceptional skill, or numerous other factors. [Citation.] There is no magic formula; any one factor may justify an enhancement." (*Sonoma Land Trust v. Thompson* (2021) 63 Cal.App.5th 978, 986.)

The court has carefully reviewed the declaration of counsel and finds the hourly rate of $350 per hour by Vince Onorio, LaDawna Fleckenstein, and Kimberli Zazzi are reasonable for similar legal services within Placer County. The court declines to issue a multiplier.

Accordingly, plaintiff's motion is granted in the reduced amount of $11,515 for attorney's fees and $930.97 for costs for a total amount of $12,445.97.